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CASE NAME: Bagdasarian, v. 1009 Harper, LLC, et al.

CASE NO.: 25SMCV04290

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 8/5/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Sky Asset

Management Group demurs to the first, second and eighth causes of action of Plaintiffs Armond Bagdasarian and Karen Wellenkamp's First Amended Complaint (“FAC”). Defendant also moves to strike certain items of damages, including punitive damages and statutory damages.

First and Second Causes of Action

Sky demurs to the two causes of action arising from the subject Lease agreement. As an alleged property

manager, Sky argues that it is not a party to the Lease and therefore not subject to the causes of action for breach of the Lease and the attendant implied warranties.

Generally, only parties to the lease are liable on a contract claim. To allege a breach of contract cause of action, a plaintiff must plead the existence of a contract between the parties, their performance or excuse for non-performance, defendant's breach, and damage to plaintiff therefrom. (*Acoustics, Inc. v. Trepte Constr. Co.* (1971) 14 Cal.App.3d 887, 913.) The warranty of habitability sounds in contract and is implied in all residential rental agreements. (*Green v. Superior Court* (1974) 10 Cal.3d 616, 629.) From the implied warranty, a tenant can reasonably expect that the landlord will maintain the property in a habitable condition by repairing promptly any conditions, of which the landlord has actual or constructive notice, that arise during the tenancy. (*Peterson v. Superior Court* (1995) 10 Cal.4th 1185, 1205-26.) A tenant may bring suit against a landlord for damages resulting from a landlord's breach of the warranty of habitability. (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.) "The elements of such an affirmative claim are [1] the existence of a material defective condition affecting the premises' habitability; [2] notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition; [3] the landlord was given a reasonable time to correct the deficiency, and [4] resulting damages." (*Id.*) Notably, the statutory basis for habitability only imposes duties to maintain the premises fit for human occupation on the lessor, not on the lessor's agents. (Civ. Code § 1941; see also § 1942 [referencing notice to the landlord or his agent as triggering the tenant's repair-and-deduct remedy, without imposing direct liability on the agent].) Agents of a landlord generally cannot be held liable on the breach of warranty because an agent is ordinarily not liable on the contract when he acts on behalf of a principal. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 929-931.) *Stoiber* only approved of tort causes of action against the landlord's agents, including the nuisance, intentional infliction of emotional distress, and negligent violation of statutory duty, but not the first cause of action for implied warranty of habitability. (*Ibid.*)

The FAC generally alleges that Plaintiffs initially entered into a lease agreement in 1991, with Defendants' predecessor in interest. (FAC ¶¶ 12-14.) Plaintiffs signed a written lease with Defendants' predecessor in 1994. (*Id.*, ¶ 15.) Sky is allegedly a "landlord and/or the agent of the Plaintiffs' landlord" under the continuing lease.

(FAC ¶ 10.) However, the more specific allegations confirm that Sky only “manages” the property. (FAC ¶ 5.) Defendant 1009 Harper LLC owns and manages the premises. (FAC ¶ 4.) Thus, the FAC’s allegations that each of the Defendants are the “landlords and/or the agent of the Plaintiffs’ landlord” can only be reasonably read as alleging that Sky is the agent of the owner of the property. (FAC ¶10.) Of course, Plaintiffs may proceed as to other tort theories alleged against Sky. (Stoiber, supra, 101 Cal.App.3d at 929.)

Accordingly, the demurrer is SUSTAINED without leave to amend as to the first and second causes of action.

Eighth Cause of Action

Sky argues that the UCL cause of action fails to state a claim because restitution is only available for money in which plaintiff has an interest and is being held by a defendant. Sky asserts that rent is typically paid to the owner of the property, here 1009 Harper. Sky’s argument relies on extrinsic contentions which contradict the pled facts. The FAC alleges that Sky has been unjustly enriched as a result of its conduct, and Plaintiffs are entitled to restitution of all rent they paid directly to Sky. (FAC ¶ 74.) Whether Sky received or retained such rent is a question of fact to be resolved outside the pleading stage.

Accordingly, the demurrer is OVERRULED as to the eighth cause of action.

Punitive Damages

Sky argues that the allegations supporting the claim for punitive damages against it do not meet the pleading requirements of Civ. Code section 3294(b). When the defendant is a corporate employer, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Civ. Code § 3294(b).) A managing agent is someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy. (White v. Ultramar, Inc., (1999) 21 Cal.4th 563, 571-573.) Whether an agent is a managing agent or officer is a question of fact. (Cruz v. Homebase (2000) 83 Cal.App.4th 160, 167-168.)

The FAC

alleges, as a matter of fact, that certain individuals were managing agents of Sky and committed and/or ratified the alleged torts. Sky's managing agents, Reza Haghshenas (Principal and Co-Founder) and Alondra Alcantar (Maintenance Manager), were on notice of the longstanding defective conditions and still failed and refused to make timely repairs. (FAC ¶ 79.) Said managing agents engaged in a practice of retaliating against, harassing, and intimidating Plaintiffs. (Id., ¶¶ 17-22, 56, 64, 69, 79.) Those managing agents had discretion to make and deny repairs to the Premises, authority to bind Sky in contracts, and authority to cease and desist from engaging in retaliation, harassment, and intimidation. (Id., ¶ 79.) The fact that Haghshenas is the founder and principal, and allegedly had authority to cause Sky to cease and desist from engaging in the tortious conduct, implies that Haghshenas had discretionary authority over corporate policy. Thus, the FAC's pled facts are sufficient to establish that managing agents of Sky committed or ratified the malicious/oppressive conduct for pleading purposes.

Accordingly,

the motion to strike punitive damages is DENIED.

Statutory Damages Under West

Hollywood Municipal Code § 17.52.090

Defendant

argues that the FAC fails to allege that it acted with specified intent to vex, annoy, injure or intimidate Plaintiffs, since general maintenance delays or administrative errors do not meet the mental state required for harassment damages. The Court independently takes notice of the text of West Hollywood Municipal Code (WHMC) section 17.52.090. This section states "Notwithstanding any other provision of this code, no landlord, or landlord's agent, property manager or representative shall, with respect to property used as a rental unit under any rental agreement or other tenancy or estate at will, however created, engage in harassment of any tenant of a rental housing unit." The section then defines harassment as conduct "done with an intent to vex, annoy, injure, or intimidate a tenant", including but not limited to a "reduction or elimination of housing services", "reduction of maintenance or failure to perform and timely complete necessary repairs or maintenance", and "any act or omission which interferes with the tenant's right to use and enjoy the rental unit", among other conduct.

As

a matter of fact, the FAC establishes that Sky engaged in tenant harassment as defined by the WHMC. The FAC alleges that Sky “reduced or eliminated housing services; reduced maintenance and/or failed to perform and timely complete necessary repairs or maintenance as set forth by contract or by state, county or local housing, health or safety laws; engaged in an activity prohibited by federal, state or local law which prohibits housing discrimination on any basis; threatened to terminate a tenancy, recover possession of a rental unit, or evict PLAINTIFFS from the PREMISES without a proper factual and legal basis; engaged in an act which interfered with PLAINTIFFS’ right to use and enjoy the PREMISES; and/or engaged in an act constituting a disturbance of PLAINTIFFS’ possession of the PREMISES, whereby PLAINTIFFS were deprived of the beneficial enjoyment of the PREMISES.” (FAC ¶ 56.) Sky engaged in said conduct “with an intent to vex, annoy, injure, or intimidate” Plaintiffs. (Id., ¶ 57.) Again, Sky removed personal property of Plaintiffs with intent “to retaliate against and harass PLAINTIFFS in order to force them to vacate the PREMISES” so that they could re-let the premises at a higher rent. (Id. ¶¶ 20-22.) Sky refused to remedy habitability issues despite sufficient notice. (Id., ¶¶ 17-19.) The statutory penalties are thus well-stated.

The

motion to strike is therefore DENIED as to this remedy.

Statutory

Damages Under Civil Code § 789.3

Sky

argues that Civil Code section 789.3 does apply since it is not a landlord. CCP section 789.3 only forbids a “landlord” from engaging in certain conduct intended to terminate the occupancy under any lease or other tenancy. As discussed, the specific facts of the FAC establish that Sky is not a landlord, but the property manager and agent of the landlord. Plaintiffs argue that Sky’s status as an agent would not immunize it from the statutory penalty under Civil Code section 2343(3), which provides that one who acts as an agent “is responsible to third persons as a principal for his acts in the course of his agency” “[w]hen his acts are wrongful in their nature.” However, Second District caselaw considered and rejected this contention:

“The statute provides only that a ‘landlord’ shall not

willfully cause termination of utility service. No mention is made of the landlord's property managers. Nevertheless, [plaintiff] argues the managers as agents of the landlord are liable under Civil Code section 2343. That section provides in part: 'One who assumes to act as an agent is responsible to third persons as a principal for his acts in the course of his agency, in any of the following cases, and in no others.... [¶] 3. When his acts are wrongful in their nature.' [¶] Here the acts of the managers were not wrongful in their nature. The acts are wrongful only if they are proscribed by statute. Because section 789.3 does not apply to persons other than landlords, we can see no basis for holding the managers liable."

(Otanez

v. Blue Skies Mobile Home Park (1991) 1 Cal.App.4th 1521, 1526.)

Accordingly,

the motion to strike is GRANTED without leave to amend as to this remedy.